

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case Nos. 2017-3296 & 2017-5858

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF PEGGY DUMONT-SMITH, LICENSE NO. LPC 1367,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional Counselor Examiners ("the Board") and Peggy Dumont-Smith ("Respondent") as follows:

- 1. The Board has jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").**
- 2. Respondent was licensed to practice as a professional counselor ("LPC") in the state of Colorado on February 23, 1996, having being issued license number LPC 1367, and is currently so licensed.**
- 3. This Order is a full and final resolution of case numbers 2017-3296 and 2017-5858. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.**
- 4. Respondent denies the following allegations, but acknowledges that if the Board were to prove the allegations at hearing, they would constitute a prima facie case of a violation of the Mental Health Practice Act, and would subject Respondent to discipline. The Board's allegations are as follows:**
 - a. From on or around December 2016 through April 2017, Respondent billed insurance for services not rendered for her former client KA.**
 - b. Respondent failed to to notify the Board of a physical condition affecting Respondent's ability to treat clients with reasonable skill and safety.**
- 5. Although Respondent disputes the allegations in paragraph 4 above, Respondent admits that if the allegations were proven by the Board at hearing,**

Respondent would have violated §12-43-222(1)(f)(I) and (II), (g)(I), and (v), C.R.S., which state:

§12-43-222. Prohibited activities--related provisions. (1) A person licensed, registered, or certified under this article violates this article if the person:

(f)(I) Fails to notify the board that regulates his or her profession of a physical or mental illness or condition that affects the person's ability to treat clients with reasonable skill and safety or that may endanger the health or safety of persons under his or her care;

(II) Fails to act within the limitations created by a physical or mental illness or condition that renders the person unable to treat clients with reasonable skill and safety or that may endanger the health or safety of persons under his or her care;

(g)(I) Has acted or failed to act in a manner that does not meet the generally accepted standards of the professional discipline under which the person practices. Generally accepted standards may include, at the board's discretion, the standards of practice generally recognized by state and national associations of practitioners in the field of the person's professional discipline;

(v) Has committed a fraudulent insurance act, as set forth in section 10-1-128, C.R.S.

PERMANENT RELINQUISHMENT

6. Respondent hereby permanently relinquishes her license and the right to practice as a LPC in the State of Colorado, commencing from the effective date of this Order, and requests that the Board accept said relinquishment. Such relinquishment shall have the same force and effect as a revocation ordered by the Board, including the provisions of §12-43-224(3)(a)(II), C.R.S. Respondent agrees not to reapply for licensure as a LPC in the State of Colorado at any time in the future.

7. Following relinquishment of her LPC, Respondent shall not perform any act requiring a license to practice.

8. Respondent also agrees not to register as a psychotherapist in the State of Colorado or perform any act constituting psychotherapy as defined under §12-43-201(9), C.R.S., at any time in the future.

TERMS AND CONDITIONS

9. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing,

pursuant to §§12-43-212 and 24-4-104(9), C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

10. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to a formal hearing on all matters herein.

11. This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.

12. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board Order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal hearing pursuant to §§12-43-212, 12-43-224, and 24-4-104(9), C.R.S.

13. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

14. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Board, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Board. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Board.

15. This Order shall be admissible as evidence at any hearing held before the Board.

16. This Order shall be a public record in the custody of the Board.

AGREED TO AND ACCEPTED BY: AGREED TO AND ORDERED BY:

RESPONDENT


PEGGY DUMONT-SMITH
LPC 1367

STATE BOARD OF LICENSED PROFESSIONAL
COUNSELOR EXAMINERS


DARCIE MAGNUSON
Program Director

Effective this 15th day of February, 2018.